

MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding (MOU) is made and entered into between the **Brecksville-Broadview Heights City School District Board of Education** and **the City of Broadview Heights, Ohio**, this 22 day of October, 2018.

This MOU will serve as the written agreement between the **Brecksville-Broadview Heights City School District** (hereinafter “District”) and the **City of Broadview Heights Police Department** (Hereinafter “City” or “Police”) provides a series of guidelines and policies relevant to the performance of the School Resource Officers (“SRO”) and will be the guiding document that officers, school administrators, and students and their caregivers look to for structure and accountability. Nothing in the MOU should be construed as limiting or impeding the basic spirit of cooperation, which exists between the participating entities listed above and all community stakeholders.

I. PURPOSE

This MOU establishes and delineates the mission of the School Resource Officer Program, herein referred to as the SRO Program, as a joint cooperative effort. Additionally, the MOU clarifies roles and expectations and formalizes relationships between the participating entities to foster an efficient and cohesive program that will build a positive relationship between Police Officers, school staff, and the students, and will promote a safe and positive learning environment and decrease the number of youth formally referred to the Juvenile Justice System.

II. MISSION

The mission of the SRO Program is to promote school safety by building a positive school climate in which everyone feels safe and students are supported to succeed. The SRO Program also seeks to reduce violent crime committed by and against youth in our community. The SRO Program accomplishes this mission by supporting safe, secure, and orderly learning environments for students, teachers and staff. SROs will establish a trusting channel of communication with students, parents, and teachers and establish regular feedback opportunities.

The role of the SRO is not to enforce school discipline or punish students. SROs will serve as positive role models to instill in students good moral standards, good judgment and discretion, respect for other students, and a sincere concern for the school community.

SROs will provide information on community resources available to students and parents. Goals and objectives are designed to develop and enhance rapport among youth, families, Police Officers, school administrators, and the community in order to promote overall student achievement and success.

E. SRO PROGRAM OVERVIEW:

The SRO Program Aims

1. To prevent and reduce potential harm related to incidents of school violence.
2. To foster a positive school climate based on respect for all children and adults in the school.
3. To create partnerships with behavioral health experts and other care providers in the community for students and family referral.
4. To ensure a safe learning environment for all children and adults who enter the building.

The SRO Program is unique to the community, based on input from the school administration, teachers, faculty, students, families and community members. The program is designed to fulfill four overall roles:

- 1) Law Enforcement
- 2) Positive School Climate/Crime Prevention
- 3) Education
- 4) Security

Law Enforcement Role - SRO's are responsible for the majority of law enforcement activities occurring at the school during school hours but not general student discipline. A determination of whether an activity rises to the level of a law enforcement activity shall be at the Officer's discretion after consultation with a school administrator. Parents, students, teachers and other school personnel should bring complaints about student misbehavior to the school principal and/or designee, rather than to the SRO.

While enforcement is the role of SRO's, alternatives to arrest should be used whenever possible, and arrest of students should be a measure of last resort. The SRO's discretion to act remains the same as that of any other Police Officer.

Fostering Positive School Climate/Crime Prevention - One of the primary roles SROs fulfill is fostering a positive school climate through relationship-building and crime prevention. Officers will engage in various activities, in consultation with school administrators, teachers, and students, and should strive to build a school culture of open communication and trust between and among students and adults by focusing on Officers getting to know students at the school, serving as role models, and working with teachers and administrators to identify students who may be facing challenges and who need additional resources or attention to be successful in school. Crime prevention activities include foot patrols, monitoring previous crime locations, speaking to teachers about reducing the opportunity for crimes to occur, analyzing possible crime patterns, investigating crimes and patrolling the parking lots. Officers may also complete security surveys analyzing the physical safety of school property and facilities.

Education – SROs should participate in the school community by becoming members of the educational team where appropriate, and by representing the law enforcement community to build positive relationships with youth, their families, and school staff.

Whether talking to students in the hallway or delivering a presentation in the classroom, SROs are embedded in the educational fabric within the school. SROs are expected to be proactive in creating and taking advantage of educational situations, and school administrators are encouraged to leverage this resource.

IV. OPERATIONAL PROCEDURES

Chain of Command for SROs – The SRO will be ultimately accountable to the City of Broadview Heights Police Department Chain of Command. The SRO is expected to cooperate with the school officials, including administrators and faculty. Provide police code of conduct for the SRO/Police Officers that will apply while in this position.

The SRO's activity in the school is guided by the following procedures, and supervision and evaluation shall be provided by the Chief of Police of the City of Broadview Heights Police Department to effectively support SRO's efforts to monitor their progress.

A. Duties

The primary functions of the SRO is to help provide a safe and secure learning environment, foster a positive school climate, reduce/prevent crime, serve as an educational resource, and act as a liaison between the schools and the Police Department. Specific daily assignments to accomplish this function will vary by school.

The SRO and School Principal or his/her designee will meet on a regular basis to discuss plans and strategies to address specific issues or needs that may arise. As required by law, SROs should never be assigned to duties within school in place of or in lieu of a certified teacher.

In the performance of his/her job, the SRO's duties may include but will not be limited to:

- 1) Enforcing criminal law and protect the students, staff, and public at large against criminal activity.
- 2) Fostering mutually respectful relationships with students and staff to support a positive school climate.
- 3) Providing information concerning questions about law enforcement topics to students and staff.
- 4) Providing classroom instruction, in consultation with the assigned teacher, on a variety of topics including, but not limited to, safety, public relations, occupational training, leadership, and life skills.
- 5) Coordinating investigative procedures between police and school administrators.
- 6) Handling initial police reports of all crimes committed on campus.
- 7) Taking enforcement action on criminal matters when deemed appropriate by the SRO after consultation with school administrators.
- 8) Attending school special events as needed.
- 9) Collecting data on SRO activities (arrest, citations, etc.)

The list of duties is not exhaustive, and the SRO may be asked to perform other tasks that fall within the scope of this Agreement.

B. Uniform and Equipment

The SRO is in the uniform of the City of Broadview Heights Police Department. The City will provide the assigned personnel with such basic equipment as may be necessary and reasonable to carry out the duties anticipated by this Agreement.

C. Daily Schedule

The Chief of Police and the City of Broadview Heights Police Department will make reasonable efforts to accommodate the needs of the District when determining the SRO's schedule with consideration of the City's needs taking priority. The SRO hours will follow those of the teaching staff.

D. Absence/Substitutions

The District understands and agrees that any short-term fill-in Officer needed due to the SRO's absence for medical, personal leave, vacation, or any emergency, would not need to meet the same requirements as set out in Section IV, as such placement is temporary. To the extent possible, the District and the City should develop and agree on a protocol for assigning and using substitute Officers when the regular SRO is unavailable. Should the regularly assigned SRO become unavailable during the term of this agreement, the Chief of Police and the Superintendent, or their designees, will meet to determine an appropriate replacement Officer.

E. Special Events

To be determined by the Chief of Police and the school administrators, consistent with this Agreement.

F. Summer Activity

SROs should accomplish as much of the required training as possible during the summer months when school is not in session. SROs may still be involved in some summer projects with the school district. However, they will spend the majority of this time on Broadview Heights City Police Department assignments.

G. Role in Responding to Criminal Activity

One of the roles of SROs, as a Law Enforcement Officers, is to engage in traditional criminal investigation and report-taking. As Police Officers, SROs have the authority to issue warnings, make arrests, and use alternatives to arrest at their discretion. SROs however, perform their duties mindful of the parties' common goal of supporting student success. The following procedures will help SROs be effective as possible in this role:

- 1) School staff will contact SROs to inform them of all violent or other criminal activity that occurs on the school campus. SROs and school officials shall discuss and agree in writing on what levels of criminal activity would prompt school officials to notify the SROs. This information will be conveyed to all school staff. In turn, SROs will inform school administration of all criminal activity they observe on the school campus.
- 2) The SRO and school officials shall put into place plans, such as de-escalation techniques, conflict resolution and restorative justice practices, to serve as an alternative to arrest, which will be distributed to school staff.

H. Role in School Policy Violations

SROs are not school disciplinarians and violations of the Student Code of Conduct or school rules that are not criminal matters should always be handled by school administration, faculty and staff, not SROs. SROs should not directly intervene unless the situation directly presents an imminent threat to the health, safety, and security of the student or another person in the school. In such cases, the SRO will employ de-escalation techniques as appropriate. School discipline is the responsibility of the appropriate school administrator and clear guidelines on SRO involvement should be developed and distributed to school staff.

The SRO, as a staff member, will report school policy violations through the proper channels to be handled by the school administration. It is the responsibility of the SROs to become familiar with the Student Handbook or Student Code of Conduct, but it is not the responsibility of the SROs to enforce the rules in these documents.

I. Sharing of Information

Communication and information sharing should be followed to facilitate a free flow of information between school officials and the SRO:

- 1) Sharing of information will be governed by the Ohio Revised Code, the Ohio Administrative Code, Ohio's Public Records Law, the Family Education Rights and Privacy Act codified as 20 USC 1232g et seq. ("FERPA"), the Ohio Student Records Privacy Act codified at R.C. 3319.321 (OSRPA"), and relevant City of Broadview Heights Police Department and Brecksville-Broadview Heights City School District policies.
- 2) The sharing of arrest-related information by the SRO with school administrators upon request of at the direction of the SRO will involve the dissemination of Arrest Reports and Calls for Service filed with the City of Broadview Heights Police Department or from other Police Agencies coming into contact with students from Brecksville-Broadview Heights City School District.
- 3) Juvenile fingerprints and photos as part of the Arrest Record will not be shared by the SRO.
- 4) If the SRO is aware of information on a student that is officially obtained by the City of Broadview Heights Police Department, which reflects that the student is in violation of school policies (School Handbook or Athletic Code), the SRO may forward that information to school administration.

- 5) If a Juvenile is an uncharged suspect in a crime, his/her information will not be released unless authorized by the City of Broadview Heights Police Department's Chief of Police.
- 6) Information which the SRO obtains from school personnel and which deals with criminal or possible criminal intelligence will be maintained by the SRO as a criminal justice file. This file may be shared with other City of Broadview Heights Police Department personnel and Criminal Justice Agencies, but will not be part of the student's school record.
- 7) Hearsay information or rumors alone will be used by the SRO only in an intelligence capacity or to validate the need for further investigation.
- 8) Any information that is obtained by the SRO that pertains to criminal activity occurring outside the City of Broadview Heights limits shall be relayed to that Police Department's jurisdiction.
- 9) When any felony occurs or any crime that prompts a response to a request for public records or information from the schools or the City or if a school building is evacuated, the SRO shall contact his immediate Supervisor as soon as possible.
- 10) The SRO shall have access to any public records maintained by the school to the extent allowed by law. Law enforcement officials may have access to confidential information in emergency situations based on the seriousness of the threat to someone's health or safety, time sensitivity, and the direct relationship of the information to the emergency, to the extent permitted under FERPA and OSRPA.
- 11) The City of Broadview Heights Police Department, the SRO, and any City of Broadview Heights Police Department employee acknowledge their obligation under FERPA to keep confidential any personally identifiable student information provided or obtained pursuant to this MOU, or pursuant to the SRO's performance of job duties as an SRO under this MOU.

J. Role in Locker, Vehicle, Personal, and Other Searches

SRO will abide by policy search and seizure policies.

SROs may participate in a search of student's person, possessions, locker, or vehicle only where there is Probable Cause to believe that the search will turn up evidence that the student has committed or is committing a criminal offense.

Unless there is a serious and immediate threat to student, teacher, or school safety, the Superintendent of Schools in concert with the Building Principals shall have final authority in the building for all noncriminal matters.

The SRO may perform searches independent of the school administration only during emergency situations and where criminal activity is suspected.

- i. Strip searches of students by SROs are prohibited.
- ii. Unless there is a serious and immediate threat to a student, a teacher, or public safety, SROs shall not initiate or participate in other physically invasive searches of a student.

K. Limits on Interrogations and Arrests

1. Interrogations – SROs may participate in the questioning of a student about conduct that could result in criminal charges only after informing the student of his or her Miranda Rights in age-appropriate language and informing the student’s parent(s) or guardian(s). Parents/guardians shall be allowed sufficient time to arrive at school to be present for interrogation.

2. Arrests –

- i. Building Principals and the Superintendent or his/he designee may be consulted prior to an arrest of a student when practical.
- ii. The student’s parent(s) or guardian(s) shall be notified of his or her arrest immediately or as soon as practical and in a timely manner.

L. Role in Critical Incidents

The SRO will be familiar with the Emergency Operations Manual of the Brecksville-Broadview Heights City School District. During critical incidents occurring when the SRO is present, the SRO will normally act as a liaison among school administrators, Police personnel, and other emergency resources if practical.

M. Role in Truancy Issues

Truancy will be handled by school personnel. The SRO may take an active role in the tracking of truants. The SRO will act as a liaison between the school and police personnel should police involvement become necessary due to safety concerns.

VI. SCHOOL DISTRICT RESPONSIBILITIES

The District shall provide the SRO of each campus and any SRO Supervisor the following materials and facilities, which are deemed necessary to the performance of the SRO's duties:

- 1) Access to a properly lighted private office, which shall contain a telephone, a secure computer, which may be used for general business purposes.
- 2) A location for files and records which can be properly locked and secured.
- 3) A desk with drawers, chair, work table, filing cabinet, and office supplies.
- 4) The opportunity for SROs to address teachers, school administrators and student families about the SRO program, goals, and objectives.
- 5) The opportunity to provide input regarding criminal justice problems relating to students.
- 6) The opportunity to address teachers and school administrators about criminal justice problems relating to students during in-service workdays.
- 7) The District Emergency Operations Manual, Crisis Plan, Student Handbook/Code of Conduct and other related materials as deemed appropriate.
- 8) School staff designee for referrals for counseling and other school-based and/or community based supportive services for students and families.
9. SROs shall respect the sensitive nature of student privacy and shall abide by all applicable confidentiality, privacy policies, and applicable laws.
- 10) Training for teachers, administrators, staff and SROs about when to directly involve SROs with student misconduct and about available alternatives to arrest.

VII. CRISIS PLANNING

The School District, the City of Broadview Heights Police Department, and the Broadview Heights Fire Department will coordinate crisis planning and training. Each entity will be involved in updates and creation of new Crisis Plans. Consistency throughout the District should be adhered to.

Lock-down drills shall be included as part of the District's preparedness plan. The Police Department shall be included in the creation of lock-down procedures so that first responders are familiar with procedures. Lock-down procedures should be trauma-informed and consistent throughout the District.

VII. REVIEWING THE MOU AND THE SRO PROGRAM

The assigned parties shall review the MOU/SRO Program annually and make adjustments as needed. Any revisions will be reflected in an updated MOU.

Complaints against the SRO shall follow the normal complaint process of the City of Broadview Heights Police Department and include notice to the appropriate school administrators. This process will be made known to parents and students through the Police Department.

IX. PROBLEM RESOLUTION

Unforeseen difficulties or questions will be resolved by negotiation between the Superintendent of the Brecksville-Broadview Heights City School District and the City of Broadview Heights Police Department or their designees.

X. TERM

The term of the MOU shall be for three (3) years commencing on November 1, 2018 and ending on October 31, 2021.

XI. TERMINATION OF AGREEMENT

The Parties agree that either party may terminate this MOU upon 30-days written notice without penalty. In the event that circumstances dictate that a prompt termination of this MOU is warranted and the Parties concur, the 30-day written notice shall be waived. Upon termination, the Brecksville-Broadview Heights City School District shall only be liable for any amounts then due and payable based upon the hours and days actually worked for that fiscal year, but not yet paid to the City of Broadview Heights Police Department.

XII. COMPENSATION

The City of Broadview Heights is responsible for the full compensation of the SRO Officer assigned to our District.

XIII. INDEPENDENT CONTRACTOR

The City of Broadview Heights Police Department agrees to perform all services pursuant to this Agreement as an independent contractor, and further agrees that no employment-related benefits or withholdings shall be paid for or made to the City of Broadview Heights or the City of Broadview Heights Police Department and/or the School Resource Officer by the Board of

Education. In the event that any benefits or withholdings are later required by operation of law, or later determined to be required, the Police Department agrees that the cost or amount of such benefits or withholdings may be deducted from the current amount of this contract and/or the attached compensation agreement, as payments are made to the Police Department, or if there is no unpaid balance or such balance is insufficient, the difference shall be reimbursed to the Board of Education by the Police Department within ten (10) days following receipt of an invoice therefore.

XIV. INSURANCE

The City of Broadview Heights shall maintain public liability insurance which shall cover the duties performed by the school resource officer and which shall name the Board as an additional insured. The Board will also maintain public liability insurance which will cover the school resource officer’s duties and responsibilities and will also name the City of Broadview Heights as an additional insured on said policy.

XV. UNENFORCEABLE PROVISION

If any term or provision of this Agreement is held by a court of competent jurisdiction to be unenforceable or invalid, the remaining provisions of this Agreement shall remain in effect as if the illegal, unenforceable or invalid term had never been contained therein.

SIGNATURE OF PARTIES & SIGNATURE DATE

City of Broadview Heights

Date

Superintendent, Brecksville-Broadview Heights Schools

Date